

PART A – COMMERCIAL TERMS

SERVICES AGREEMENT

This Agreement (as defined in the General Terms) is entered into by and between Aramex as described in 1(a) and the Customer as described in 1(b) below, together the Parties and individually a Party, and in accordance with the Terms contained herein.

The Agreement consists of:

- PART A – Commercial Terms;
- PART B – General Terms;
- PART C – Service Specific Terms.

RECITALS

WHEREAS:

1. Customer requires the Services for its Shipments (as defined below);
2. Aramex is a leading provider of comprehensive logistics and transportation solutions including freight forwarding, and customs clearance; and
3. Customer has requested, and Aramex has agreed to perform such Services on the terms and subject to the conditions set forth in this Agreement, and Customer has agreed to receive and pay for such Services in accordance with the terms set forth in this Agreement.

1. Aramex	(a) Aramex Emirates LLC, a company registered in Dubai whose registered office is at PO Box 1216, Building and Warehouse No. 3, Um Ramool, Dubai, UAE (Aramex) Contact: +971 600 544000 Email: DXBJALSALSALES@aramex.com
Customer	(b) Modern Line Distribution LLC, a company registered in Dubai whose registered office is at 6 4 St - Umm Ramool - Dubai (Customer) Contact: +971 4 47018600 Email: o.majdalawi@postaplus.com
2. Commencement Date	11/10/2024
3. Appointment	Non-Exclusive appointment.
4. Territory/ies	United Arab Emirates ("UAE")
5. Service Fees Review	The Service Fees will be increased in accordance with clause 9.3, and, in the event the Parties do not reach an agreement, the Service Fees will increase by [CPI] or [5 %]. In the event no % is inserted, the CPI increase will apply.
6. Tax Obligations	The Customer hereby represents and warrants that: (a) Customer is a resident under the Territory corporate income tax law; or (b) VAT, GST or the Territory equivalent applies
7. Agreement Term	The Agreement shall be effective from the Commencement Date and shall, subject to the rights of earlier termination set out in the General Terms, remain in force until terminated by either Party giving the other Party not less than [Insert] [weeks']/[months'] notice [such notice to

		expire on or after the date that is [Insert] year after the Commencement Date].
8.	Services	Air Freight Sea Freight Land Freight Customs Clearance In-land Transportation Loading and unloading operations As detailed in part C – Service Specific Terms
9.	Payment Terms	30 days from date of the invoice
10.	Security Deposit	00
11.	Custom Clearance Deposit	00]
12.	Jurisdiction	Governing Law Dubai Courts Dubai
13.	Customer Acceptance	Customer warrants an authorised officer of the Customer will attend to the countersignature of this Agreement. If a signed copy of this Agreement is not returned by the Customer, Aramex shall treat the provision of the Services as acceptance of the Agreement and the terms and conditions contained herein. shall apply.
For and on behalf of [Insert full name of Aramex group entity]:		For and on behalf of Modern Line Distribution LLC
[Aramex Dubai] Name: Tarek Elias Abu Yaghi Position: General Manager Date: 26-01-24 being the duly authorised person.		[Modern Line Distribution LLC Dubai] Name: Osama Majdlaweyh Position: Chief Financial Officer Date: 11 Jan 2024 being the duly authorised person.



PART B - GENERAL TERMS FREIGHT SERVICES

NOW THEREFORE in consideration of the mutual covenants and agreements contained in this Agreement, the Parties agree as follows:

1 DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement and unless the context otherwise dictates, the following terms and phrases will have the meanings set out below:

"Additional Charges" means any other charges or surcharges assessed or levied pursuant to these General Terms from time to time, including fuel and other surcharges, clearance service fees, ancillary charges, Shield Protected Services charges, return charges, special handling fees, duties and taxes, Excise Tax, Import and export surcharges, Import Duties, customs duties and other related disbursements payable pursuant to clause 6.4.7.2 and other costs reasonably incurred by Aramex relating the provision of the Services.

"Agreement" means the agreement between the Parties made up of the Commercial Terms, General Terms and Service Specific Terms.

"Business Day" means a day on which banks in the Territory are open for business.

"Commencement Date" means date specified in the Commercial Terms.

"Commercial Term(s)" means the terms set out in part A of this Agreement.

"Controlled Goods" means any Goods that require temperature and/or atmosphere control.

"CPI" means the consumer price index for the Territory.

"Customs Clearance Deposit" means the amount set out in the Commercial Terms.

"Dangerous Goods" means goods that are or may become dangerous, hazardous, noxious (including radioactive materials), inflammable, explosive or which are or may become liable to damage any property, or injure or cause the death of any person whether or not listed in any unofficial, international or national code, convention, listing or table.

"Dangerous Goods Policy" means the Aramex Dangerous Goods Policy as amended from time to time and available at

[Aramex's Dangerous Goods policy](#)¹.

"Excise Goods" means all goods which are subject to excise duty as per the local Excise Law governing regulations in the Territory/ies including but not limited to tobacco and tobacco products; liquids used in electronic smoking devices and tools, electronic smoking devices and tools, carbonated drinks, energy drinks, and sweetened drinks.

"Excise Tax" means an indirect tax or duty levied on specific Excise Goods for their production, licensing and sale as

defined by the local excise law and governing regulations in the respective Territory(ies).

"General Terms" means the terms contained in part B of this Agreement.

"Goods" means the various shipment, packages, parcels, stock and/or products that are owned by or under the legal possession of the Customer.

"Import Duties" means a duty applicable on cost of goods, including insurance, freight, incidental charges related to transportation.

"Minimum Shipping Commitment" means the committed shipping volume agreed to by the Customer (if applicable) and set out in Appendix(ces) 1 of the Service Specific Terms.

"Security Deposit" means the amount set out in the Commercial Terms.

"Service Fees" means fees due in exchange for Services provided as set out in Appendix 2 of the Service Specific Terms or, alternatively, where not set out in Appendix 2 of Service Specific Terms, as quoted by Aramex from time to time.

"Services" means the services provided to the Customer by Aramex under this Agreement and which are set out in Appendix 1 of the Service Specific Terms.

"Service Specific Terms" means the services and terms set out in part C of this Agreement.

"Shield Protected Services" means the added value enhanced liability program offered by Aramex, which the Customer may request on a Shipment-by-Shipment basis, in accordance with the terms of Clause 12.1.6.

"Shipment" means a consignment of Goods which are tendered to Aramex for delivery/shipping as part of the Services.

"Term" means the period set out in the Commercial Terms which commences on the Commencement Date.

"Territory" means the territory set out in the Commercial Terms.

"VAT" means any value added tax, consumption tax, goods and service tax or any similar tax or charge on goods or services imposed under a VAT Law from time to time.

"VAT Law" means a value added tax law, and supplementing regulations, consumption tax, goods and service tax or any similar tax or law issued by the relevant authority in the Territory from time to time.

1.2 In this Agreement:

1.2.1 the headings are for convenience only and shall not affect its interpretation;

1.2.2 the words "include", "including" and "in particular" shall not be interpreted as limiting the generality of any foregoing words.

1.3 The documents comprising the Agreement shall be read as one document. In the event of any ambiguity, inconsistency or a conflict between the provisions of any of the documents comprising the Agreement, the documents

¹ [http://www.aramex.com/StaticContent/StaticContent/GeneralTerms/GeneralTerms.pdf](#)
Documents: 2010-2011_GeneralTerms-English-Updated.docx, 2010-2011_GeneralTerms-English-Updated.docx

shall take precedence in the following order (1) General Terms, (2) Commercial Term; and (3) Service Specific Terms.

2 COMMENCEMENT AND DURATION

2.1 This Agreement will take effect as of the Commencement Date and be valid and in full force and effect for the duration of the Term, unless terminated earlier, in accordance with the terms of this Agreement. 2.2 This Agreement may be renewed or terminated in accordance with the Commercial Terms.

3 AGENT OR PRINCIPAL CONTRACTOR

3.1 Subject to these General Terms, Aramex may provide Services as agent on behalf of the Customer, or as principal contractor.

3.2 When acting as an agent Aramex:

3.2.1 acts solely on behalf of the Customer in securing services by establishing contracts with third parties, including subcontractors, so that direct contractual relationships are established between the Customer and such third parties. Aramex is not liable for acts and omissions of such third parties.

3.2.2 has authority to enter into any contracts with such third parties on behalf of the Customer, which Aramex, in its absolute discretion, believes is necessary for the performance of the Services or to carry out the Customer's instructions and whether such contracts are subject to the trading conditions of the parties with whom such contracts are made, or otherwise.

3.3 To the extent that Aramex performs all or any part of the Services required by the Customer, Aramex shall be deemed to provide such Services, or the part so performed, as principal independent contractor.

4 OBLIGATIONS OF ARAMEX

4.1 Aramex shall:

4.1.1 perform the Services with a reasonable degree of care and skill;

4.1.2 be solely responsible for payment and filing obligations for Aramex's tax(es) in accordance with applicable local laws, without any liability to the Customer;

4.1.3 comply with all applicable laws, including any statutory requirements applicable to the employment of any personnel; and

4.1.4 maintain such licences and permits as are required by applicable law.

5 ROUTING AND DELIVERY TIMES

5.1 Subject to any written agreement between Aramex and the Customer, Aramex shall at all times have absolute freedom and discretion to determine, without notice to the Customer:

5.1.1 the routes and procedure for carrying the Goods. The Customer agrees to all routing whether or not the most direct, scheduled, advertised or customary and diversions, including the possibility that the Goods may be carried via intermediate stopping places;

5.1.2 the modes of transport; and

5.1.3 the Goods storage, stowage and handling, including whether to carry the Goods on or under deck (where applicable).

5.2 Aramex shall never be obliged to arrange for any Goods to be carried, stored or handled separately from the Goods of other customers.

5.3 Unless previously agreed in writing, between the Parties, delivery times are not guaranteed and Aramex does not undertake that the Shipments or any documents shall depart, arrive, or be available on particular dates or take a particular route. Any additional cost incurred for Goods to be carried, stored or handled separately shall at all times be for the Customer's account

6 RESPONSIBILITIES AND WARRANTIES

6.1 The Parties agree that the rates provided under this Agreement are conditional on the committed shipping activity by Customer as described below and that Customer will meet the commitments agreed to under this Agreement. If it becomes evident, during any month of the Term, that the Customer will not achieve the Minimum Shipping Commitment, the Customer will promptly notify Aramex in writing and the Parties shall meet in person, via online meeting or by phone to discuss in good faith acceptable solutions to the shortfall. Any acceptable solution shall be agreed to in writing. If the Parties fail to reach a mutually acceptable solution following such good faith discussions, the Customer must pay Aramex the rates generally applicable for the actual Shipments shipped during that month of the Term. The Parties agree that only the Shipments shipped under Customer's account number will be used to determine whether Customer has reached the minimum requirements of this Agreement.

6.2 The Customer is responsible for obtaining its own insurance and Shipments are transported at the Customers risk. At the written request of the Customer, Aramex may arrange Shield Protection Services as described in clause 12.1.6.

6.3 Customer shall throughout the Term of this Agreement:

6.3.1 pay Aramex the fees at the rates set out in Appendix 2 of the Service Specific Terms, and in accordance with Clause 9;

6.3.2 comply with Aramex's [Code of Conduct](#)²;

6.3.3 make available, on request, representatives to help Aramex identify the Goods which are the subject of the Services; and

6.3.4 provide reasonable assistance to Aramex as it may reasonably request to enable Aramex to provide the Services.

6.4 The Customer represents, warrants and undertakes that:

² [Aramex's Code of Conduct](#) is available at [www.aramex.com](#) under the heading "About Aramex" and "Our Commitment to the Environment".

6.4.1 It is either the owner of the Shipment or the authorised agent of the person owning or entitled to possession and/or control of the Shipment, and is authorised to contract with Aramex on the terms of the Agreement;

6.4.2 the Shipment is properly and sufficiently prepared, labelled, marked, packed, stuffed or stowed (as appropriate) by or on behalf of the Customer in a manner appropriate to the Services and any operations or transactions affecting the Shipment and applicable law, and provide to Aramex all of the necessary information, documents and/or documentation/declarations as required to provide the Services, including those relating to the complete and accurate description of the Goods;

6.4.3 save for the licences and permits maintained by Aramex pursuant to Clause 4.1.4 it has obtained all of the necessary licences, approvals or permits for the sale, distribution, transportation, exportation, importation or handling of the shipment, including for Excise Goods, as are required by applicable law;

6.4.4 neither the performance of the Services, nor any payment or other transaction relating to the Services, will or might expose Aramex or any member of its group or any of its respective officers, employees, servants, agents or insurers, to any sanctions or any other breach of applicable law;

6.4.5 neither the Customer nor any person it trades with is a prohibited person or is owned or controlled by, or is acting on behalf of, a prohibited person; and

6.4.6 the description and particulars of the Shipment, including any marks, numbers, condition, quantity and weight, are full and correct.

6.4.7 The Customer shall:

6.4.7.1 comply with all applicable laws, including in relation to customs, data protection, sanctions and embargos. In the event Aramex reasonably suspects or is aware of any actual or potential breach or failure by the Customer to comply with any Applicable Law Aramex may suspend provision of the Service, at no cost or liability to Aramex;

6.4.7.2 retain sole liability for all Additional Charges, customs duty, import VAT, anti-dumping duty (where applicable), countervailing duty or other import taxes Excise Tax, duties, deposits, fines, penalties and levies as may apply to the Shipment (whether actual or potential), and will reimburse Aramex on demand should Aramex have made any such payment;

6.4.7.3 be solely responsible for payment and filing obligations for the Customer's tax(es) in accordance with applicable local laws, without any liability to Aramex; and

6.4.7.4 promptly provide Aramex with such information, execute all documents and do all acts and things required in order to enable Aramex to arrange and safely perform the Services and comply with all applicable laws.

6.4.8 The Customer shall not deliver to Aramex or cause Aramex to deal with:

6.4.8.1 store, handle or transport any drugs, stolen goods, contraband, counterfeit, pirated, or other illegal matter or

substances, stowaways or any other goods listed by Aramex or applicable law as prohibited or restricted from time to time;

6.4.8.2 Controlled Goods, unless previously agreed in writing by Aramex pursuant to Aramex's Controlled Goods provisions in clause 7.1; or

6.4.8.3 Dangerous Goods, unless previously agreed in writing by Aramex pursuant to Aramex's Dangerous Goods Policy and the provision on clause 7.2; or

6.4.8.4 Excise Goods, unless previously agreed in writing by Aramex pursuant to Aramex Excise Goods provision in clause 7.3

7 CONTROLLED GOODS AND SHIPMENTS THAT REQUIRE SPECIAL HANDLING:

7.1 Controlled Goods

7.1.1 The Customer undertakes not to tender for transportation, storage and handling any Controlled Goods or Shipments that require special or unusual handling ("Special Goods") without prior written agreement of Aramex. Where Aramex agrees to transport, store or handle Controlled Goods or Special Goods, the Customer warrants that it has:

7.1.1.1 given Aramex reasonable prior written notice of the nature of, and particular temperature, atmosphere and/or handling requirements for the proper transportation, storage and/or handling of the relevant Controlled Goods or Special Goods;

7.1.1.2 in the case of a temperature and/or atmosphere-controlled transport units stuffed or loaded by or on behalf of the Customer, that the relevant transport unit and Goods have been properly pre-cooled, pre-heated and/or otherwise prepared as appropriate;

7.1.1.3 the Goods have been properly stuffed or loaded in the transport unit;

7.1.1.4 the transport unit's thermostatic or other controls have been properly set and checked by or on behalf of the Customer

7.1.1.5 the Controlled Goods or Special Goods are packed, sealed and not capable of spillage;

7.1.1.6 has provided Aramex with all the specifications and characteristics of the Controlled Goods or Special Goods and the appropriate manner and method of storage, handling and transportation of the Controlled Goods or Special Goods (as appropriate); and

7.1.1.7 has provided Aramex with all other information necessary for Aramex to perform the Services in connection with the Controlled Goods or Special Goods safely and in accordance with all Applicable Law.

7.1.2 Aramex may, at its discretion, apply additional charges to transport, store and/or handle any Controlled Goods or Special Goods.

7.1.3 Aramex shall not be liable for any loss of or damage to Controlled Goods or Special Goods arising from a deviation or temperature excursion of Controlled Goods or

Special Goods or any other breach of Clause 7.1 by the Customer and the provisions of Clause 12 hereinbelow apply.

7.2 Dangerous Goods

7.2.1 Aramex will not transport, store or handle Dangerous Goods unless it has previously agreed to do so in writing. Where Aramex at its sole discretion agrees to transport, store or handle Dangerous Goods, the Customer warrants that it has:

7.2.1.1 given Aramex written notice of the nature of the Dangerous Goods prior to Aramex's receipt of the same, including:

7.2.1.1.1 all the specifications and characteristics of the Dangerous Goods and the appropriate manner and method of storage, handling and transportation of the Dangerous Goods (as appropriate); and

7.2.1.1.2 all other information necessary for Aramex to perform the Services in connection with the Dangerous Goods safely and in accordance with all Applicable Law; and

7.2.1.1.3 obtained all necessary approvals, consents and/or licenses from the relevant authorities that are or may be necessary for Aramex to transport, store or handle such Dangerous Goods in accordance with applicable law, without risk or delay.

7.2.2 Aramex may, at its discretion, apply additional charges to transport, store or handle any Dangerous Goods.

7.2.3 The Dangerous Goods must be distinctly marked on the outside so as to indicate the nature and characteristics of the Dangerous Goods and so as to comply with all applicable law.

7.2.4 Dangerous Goods shall at all times be subject to the Dangerous Goods Policy.

7.2.5 Dangerous Goods that have been tendered to Aramex in breach of this clause 7.2 or which, in the opinion of Aramex, constitute a risk to other goods, property, environment, life or health may, at the sole discretion of Aramex (or any other person in whose custody they may be at the relevant time) and without notice to the Customer, be destroyed or otherwise dealt with at the expense and risk of the Customer and without liability to Aramex.

7.3 Excise Goods

7.3.1 The Customer warrants that it holds and shall continue to retain the necessary licenses and registration to distribute Excise Goods within the Territory. For the purposes of this provision distribution shall include (i) importing into, (ii) produced, (iii) stockpiled/ warehoused within the Territory and/or (iv) while exporting the goods by the Customer and/or any agent of the Customer. Aramex may at any time during the provision of the Services request proof hereof.

7.3.2 The Customer further warrants that it complies with all applicable laws and regulations pertaining to the distribution and warehousing of Excise Goods and is solely responsible for any trading activities performed in relation to said Excise Goods. The Customer acknowledges that Aramex has no visibility, control, or responsibility regarding the Customer's trading activities as it pertains to Excise Goods.

7.3.3 The Customer acknowledges and confirms that Aramex is not, unless agreed to in writing, required to provide bonded warehousing facility/ies for the warehousing of Excise Goods. In the event that Excise Goods are to be warehoused by Aramex as part of the Services, the Customer shall provide written proof to Aramex that all Excise Tax due on said Excise Goods have been settled with the necessary authorities. The Customer shall retain sole liability for all Excise Tax as well as any penalties and costs related to failure by the Customer to comply with any Excise Tax laws.

8 CUSTOMS

8.1 Customs Compliance

8.1.1 Where Aramex provides customs clearance Services, Aramex does so as the Customer's agent. The Customer agrees that it has sole liability for errors in customs declarations made on its behalf by Aramex, unless such errors are the result of Aramex's breach of this Agreement, negligence, wilful misconduct or fraud.

8.1.2 Customer hereby authorizes Aramex for the purpose of clearance of the Shipments under this Agreement with the requisite authorities for the purposes of customs, entry tax and such other applicable statutory clearances. If any statutory authority requires additional documentation for the purpose of confirming Aramex's authorized status, it is the responsibility of Customer to provide the required documentation at its own expense.

8.1.3 The Customer undertakes to indemnify Aramex, immediately upon first written demand, of any and all costs, charges, disbursements and expenses, including fines, penalties, tax, duties (including Import Duties) and levies, that Aramex may incur in performing customs clearance Services on behalf of the Customer.

8.1.4 Aramex will not act as the Importer of Records (IOR) and/or Exporter of Records (EOR) on behalf of the Customer, unless agreed in writing and subject to the terms of a separate agreement to be executed between the Customer and Aramex.

8.2 Customs Duties and related other disbursements

8.2.1 The Customer will be responsible for paying any and all Import Duties. Aramex is authorised (but shall be under no obligation) to advance any duties (including Import Duties), taxes or any other types of charges, and to make any disbursement, with respect to the Shipments, and the Customer shall be liable for the reimbursement thereof immediately upon receiving an invoice from Aramex in this regard, or as otherwise agreed with Aramex.

8.2.2 The Customer's obligations under this clause will also apply where any Shipments are returned to the Customer for any reason whatsoever.

8.3 Aramex has the right to request the Customer to pay Aramex a Customs Clearance Deposit in the amount stated in the Commercial Terms, which will be paid to Aramex in the form of a cashier's cheque or a bank transfer to Aramex's bank account as identified by Aramex and to be held by Aramex.

8.4 In the event Customer does not pay invoices issued by Aramex in accordance with this Agreement, Aramex shall have the right to deduct, unilaterally, such unpaid amount(s) from the Customs Clearance Deposit, without the need for a court order allowing it to do so. If Aramex uses, applies, or retains the whole or any part of the Customs Clearance Deposit, Customer will deliver to Aramex the amount necessary to replenish the Customs Clearance Deposit to its original sum immediately upon notification from Aramex of the amount due. Failure to pay the amount due shall constitute a material breach, and Aramex reserves the right to suspend the custom clearance Service immediately and until such time as the Customer pays the outstanding balance of the Customs Clearance Deposit.

9 PAYMENT TERMS

9.1 The Customer shall pay Aramex the Service Fees in consideration for Aramex performing the Services. Any other services requested by the Customer and provided by Aramex that are not included in the Agreement will be charged in accordance with mutually agreed rates.

9.2 The Service Fees are exclusive of all appropriate taxes (including direct, indirect, local, goods and service tax, and VAT, and/or levies, Additional Charges, and any other fee imposed by any government or other authority, as may be applicable to the Services from time to time. Any VAT, goods and service tax, or other tax imposed in accordance with the respective tax law, or other applicable law or regulation will be charged to Customer at the prevailing rate, and will be paid by Customer in addition to the Service Fees. Aramex will issue a valid tax invoice and/or other relevant documents to Customer according to VAT Law.

9.3 The Service Fees will further be reviewed on an annual basis 60 days prior to the anniversary of the Commencement Date. The review of the Service Fees shall where applicable be based upon changes to Customer's cost base associated with labour rates, utility costs, fuel increases, statutory changes and any other material input cost related to the Services. If the Parties do not agree the increased amount payable by the anniversary of the Commencement Date the Service Fees will automatically increase by the amount set out in the Commercial Terms.

9.4 Aramex's invoices for Service Fees shall be due for payment within the payment terms set out in the Commercial Terms.

9.5 Aramex's invoices for Additional Charges shall be due and payable in accordance with the payment terms set out in the specific invoice.

9.6 All payments due from the Customer under the Agreement shall be made free and clear from any deduction (in respect of banking charges or otherwise), set-off or counterclaim of any kind. If withholding is required by law, the Customer shall pay such additional amount as will ensure that the net amount received by Aramex equals the full amount which would have been received by it had no such deduction or withholding been required.

9.7 If the Customer, in good faith, disagrees on reasonable grounds with the amount of, or any amounts within, any invoice submitted by Aramex, then the Customer shall pay the amount of the Invoice that is not disputed in accordance with the provisions of Clauses 9.4 or 9.5 and 9.6 and shall provide its justification for disputing the amount of, or any amounts within, the invoice in writing within 7 (seven) days of the date of the relevant invoice ("Invoice Dispute"), failing this, the Customer will be deemed to have accepted the invoice. Following receipt of a notice of Invoice Dispute, the Parties will, within 14 days of receipt of the Invoice Dispute, resolve the Invoice Dispute. Following resolution of the Invoice Dispute, any amount agreed or found to be payable by the Customer shall be paid within 7 days.

9.8 If the Parties do not reach a resolution to the Invoice Dispute or the Customer fails to pay an invoice by the due date, Aramex may, without prejudice to any other rights or remedies Aramex may have, suspend all or part of the Services immediately and until a resolution is reached or the outstanding invoice is paid.

9.9 All payments under this Agreement will be made by (a) electronic transfer to the bank account of Aramex specified in the relevant invoice, quoting the invoice number against which the payment is made, or (b) by cheque (not post-dated).

9.10 Aramex will have the right to deduct from, and set-off against, any amounts owed to Customer by Aramex from time to time to the extent of the amounts owed by Customer to Aramex under this Agreement. The rights of Aramex under this Section are in addition to the other rights and remedies (including, without limitation, other rights of set-off) which Aramex may have.

9.11 Security Deposit

9.11.1 Aramex has the right to request the Customer to pay Aramex a Security Deposit in the amount stated in the Commercial Terms, which will be paid to Aramex in the form of a cashier's cheque or a bank transfer to Aramex's bank account as identified by Aramex and to be held by Aramex.

9.11.2 In the event Customer does not pay the invoices issued by Aramex in accordance with Clause 9.4 or 9.5 and 9.6 above, Aramex shall have the right to deduct such unpaid amount(s) from the Security Deposit against official receipts. If Aramex uses, applies, or retains the whole or any part of the Security Deposit in accordance with this Agreement, Customer will deliver to Aramex the amount necessary to replenish the Security Deposit to its original sum immediately upon notification from Aramex of the amount due. Failure to pay the amount due shall constitute material breach under this Agreement, and Aramex reserves the right to suspend the Service until such time Customer pays the outstanding balance(s).

9.12 Upon termination of the Agreement and in the event the Customer failed to pay any invoices of the Service Charges or Additional Charges, Aramex reserves the right to withhold return of the Security Deposit until such time

Customer has paid, in full, all outstanding invoices issued under this Agreement.

9.13 Where Goods are in Aramex's possession and either (a) the Customer fails to pay an invoice; or (b) Goods can be considered abandon, and irrespective of whether the goods in Aramex's possession are directly related to the Services and provided 14 calendar days written notice has been given by Aramex (which can be sent in accordance with clause 19), Aramex shall have the right to destroy, sell, abandon and/or give away any Goods which are left in the Facility, without the need to take any further legal action, or obtain a court order or a judgement in that regard.

10 FUEL AND OTHER SURCHARGES

10.1 All Service Fees are exclusive of Fuel and other applicable surcharges. The Customer, by tendering a Shipment to Aramex, agrees to pay the surcharge(s) in force at that time as published on fuel surcharge index <https://www.aramex.com/ae/en/fuel-surge>.

10.2 Aramex reserves the right to assess and amend its fuel surcharge from time to time, the duration and amount of such revisions will be determined by Aramex.

10.3 In the event that Aramex has agreed to incorporate the fuel surcharge into the Service Fees as set out in Part C Appendix 2 and should there be an increase in the fuel prices as issued by the applicable government or regulatory body, Aramex will provide 7 (seven) days written notice of such increase ("Fuel Increase Notice") to the Customer. The Parties must within 7 (seven) days of the Customer receiving the Fuel Increase Notice agree and amend the Service Fees in writing. If the Parties do not reach agreement on the amended Service Fees, the Service Fees will, effective immediately, be adjusted in line with the fuel surcharge index as indicated in 9.1 above.

11 RISK AND INSURANCE

11.1 The Customer and Aramex respectively shall maintain on force for the Term policies of insurance as may be reasonable or required by applicable law.

11.2 Risk of loss or damage to the Customer's Goods shall at all times remain the Customer's responsibility. Accordingly, the Customer hereby confirms that it has and will continue to maintain at its own expense adequate insurance cover ("Goods Insurance") with a reputable insurer up to full value of the Goods and on an indemnity basis, throughout the Term of this Agreement and whilst the Goods are in the custody of Aramex. Any claims for loss or damage to the Goods will be first reported and claimed under the insurance policy maintained by the Customer on primary basis.

11.3 Aramex shall not be required to take out specific insurance in relation to any Goods or Services unless expressly agreed otherwise with the Customer. As a value-added service, Aramex may (where possible) and on written request from the Customer, facilitate the procurement of insurance cover in respect of the risk of losses or damages to the Goods, subject to the terms of such insurance policies and subject to clause 11.4 herein below. All premiums, costs

and deductibles related to any such insurance cover shall at all times be for the Customer's account.

11.4 To the extent that the Customer obtains insurance cover through Aramex as described in clause 11.3 above, the Customer will at all times declare the full replacement value of their Goods/Shipment accurately supported by relevant invoice or other documentation and in timely manner to Aramex for the purpose of said insurance. The Customer warrants it shall without delay, but no later than 24 hours prior to the execution of the Services, works, collection of or receipt of Goods by Aramex or at Aramex' facility, notify Aramex of any variation in the value of the Goods. Aramex shall under no circumstances whatsoever be liable for any shortfall or inadequacy in insurance cover due to the Customer's failure to provide accurate or timely declarations and/or variation/s in declarations, of value for their Goods / Shipments.

11.5 Insurance effected by Aramex on behalf of the Customer does not cover indirect loss or damage, or loss or damage caused by delays. All terms of any insurance policies contracted by Aramex on behalf of the Customer are deemed agreed directly between the Customer and the relevant insurance provider, without responsibility of Aramex.

11.6 The Customer warrants that any Goods Insurance policy contracted pursuant to Clause 11.2 will list Aramex as an insured person alternatively, will include a waiver by the insurance Aramex of any subrogated claims against Aramex.

11.7 Should Customer elect not to insure its Goods or should the insurance cover arranged by Aramex pursuant to clause 11.3 above to cover loss or damage to Customer's Goods for any reason whatsoever, then Aramex's liability at all times and in all circumstances shall be limited in accordance with clause 12.1 of the Agreement.

12 LIABILITY AND INDEMNITY

12.1 ARAMEX LIABILITY

12.1.1 Aramex will in no way be liable in the respect of loss or damage to the Shipments except as expressly set out in this clause 12, and all other liabilities are hereby excluded, save to the extent that such loss or damage was caused by Aramex's negligent act or omission in performing the Services under this Agreement. To the extent that Aramex is negligent the following limits will apply.

12.1.2 Liabilities for loss or damages to Shipments in transit: Customer agrees that notwithstanding any other provisions of this Agreement to the contrary, the below international conventions governing the carriage of Shipment will apply to loss or damage to Goods in the performance of the Services:

12.1.2.1 Warsaw and Montreal Conventions (Airfreight);

12.1.2.2 Hague Visby Rules (Sea freight); and

12.1.2.3 Convention on the Contract for the International Carriage of Shipment by Road ("CMR").

12.1.3 Aramex's liability towards Customer for loss or damage to a Shipment in transit (will be governed by the aforementioned conventions, and in the event that the

forementioned conventions do not apply for any reason whatsoever, then the Parties hereby agree Aramex's liability towards Customer for loss or damage to a Shipment in transit (courier services) will not exceed up to an amount equivalent to Twenty-Five United States Dollars (USD 25) for each lost or damaged domestic Shipment, and up to One Hundred United States Dollars (USD 100) for each lost or damaged international Shipment.

12.1.4 Liability for loss or damage resulting from customs clearance services - Aramex's liability towards Customer for loss or damage to a Shipment resulting from customs clearance services will be equal to the lesser of (i) the value of the Shipment, or (ii) the United States Dollars amount equal to last invoice issued and paid by Customer for such Services immediately before the date the claim arose. Aramex's aggregate liability per annum, in terms of this clause 12.1.4 shall not exceed an amount equal to the customs clearance fees paid by Customer to Aramex for such customs clearance services for the last month immediately preceding the date of the incident.

12.1.5 Aggregate Liability. Notwithstanding the any other provisions of this Agreement, Aramex's aggregate total liability (including loss and damage to Goods) (per contract year) arising from this Agreement shall in no event exceed the total amount of the previous one (1) month's invoice received by Aramex during the contract year in which the claim arose.

12.1.6 Shield Protected Shipments. Where Customer wishes for Aramex to enhance its liability for loss or damage of a Shipment, Customer may make a written request to that effect in relation to that particular Shipment, and subject to Customer's payment of the Shield Service Fees determined pursuant to the rates stated in Appendix 2 of the Service Specific Terms and governed by the [Shield Terms and Conditions](#)³, Aramex's liability for: (i) non-document Shipments will be extended up to Ten Thousand United States Dollars (USD 10,000); and (ii) documents Shipments will be extended up to Three Hundred United States Dollars (USD 300).

12.1.7 Aramex will not be liable for:

12.1.7.1 Shipments lost or damaged unless such Shipments were in good and sellable condition when delivered to Aramex and such loss or damage was caused by Aramex's negligent act or omission in performing the Service under this Agreement. On receipt of any Shipment, Aramex will, so far as reasonably practicable, carry out an external check of the condition of the Shipments. Aramex will endorse the delivery notes with details of any apparent problems;

12.1.7.2 any delay or failure to give instructions or authority by Customer or any person on its behalf in respect of any matter relating to the Services or the Shipments or where there is any breakdown in or failure on Customer's part to comply with any agreed procedures;

12.1.7.3 the impact of any sudden or unplanned variations in Customer's requirements relating to the Services and/or Shipments, as well as any steps which Customer requires Aramex to take to deal with them;

12.1.7.4 any claims unless they are notified in writing to Aramex within ten (10) business days of delivery of the Shipment;

12.1.7.5 the contents of any sealed carton or container;

12.1.7.6 Shipments found to be missing or damaged on dismantling of any pallet load;

12.1.7.7 loss of or damage to any Shipment due to faulty or inadequate packaging; or

12.1.7.8 any loss of or damage to Controlled Goods/Special Goods arising from a deviation or temperature excursion of Controlled Goods/Special Goods or any other breach of Clause 7.1 by the Customer. If, notwithstanding this clause 12.1.7.8, Aramex is nevertheless found liable for such loss or damage, its liability shall in no circumstances exceed the amount set out under this clause 12;

12.1.7.9 any loss of or damage to Dangerous Goods arising from a breach of Clause 7.2 by the Customer. If, notwithstanding this clause 12.1.7.9, Aramex is nevertheless found liable for such loss or damage, its liability shall in no circumstances exceed the amount set out under this clause 12; or

12.1.7.10 any loss of or damage to Excise Goods arising from a breach of Clause 7.3 by the Customer. If, notwithstanding this clause 12.1.7.10, Aramex is nevertheless found liable for such loss or damage, its liability shall in no circumstances exceed the amount set out under this clause 12.

12.1.8 In no event will Aramex be liable for any type of consequential or special or indirect or incidental damages or other indirect loss, however arising, whether or not Aramex had knowledge that such damage might be incurred, including but not limited to loss of income, profit, interest, utility or loss of market.

12.1.9 Customer shall make any claim relating to the Services or otherwise under this Agreement no later than 12 months of the act or omission alleged to have caused the claim.

12.2 ARAMEX INDEMNITY

Subject to any exclusions in this Agreement or at law, Aramex will indemnify the Customer, from any third party claims or liability that arises from or relates to damage or loss of property (excluding Goods and Shipment), or from any injury or death of any person directly arising out of any negligent acts or omissions of Aramex, its employees, agents or subcontractors while providing Services under this Agreement.

12.3 CUSTOMER INDEMNITY AND LIABILITY

12.3.1 Customer will be solely liable for any mis-declaration of the Shipment.

³ [https://www.aramex.com/Content/Service-Specific-Terms-and-Conditions/Shipments/Shipments-Terms-and-Conditions.pdf](#)

12.3.2 Customer will indemnify and hold harmless Aramex, its officers, directors, agents, servants and employees from any claims, losses, damages, judgments, awards, orders or liability, any and all costs, charges, disbursements and expenses, including fines, penalties, tax (including Excise Tax), duties (including Import Duties) and levies that may arise from or relate to (i) Aramex's provision of the Services under this Agreement, including without limitation, liability for customs duties, charges and or/fines, (ii) the Customer breach of its obligations or warranties under this Agreement or the applicable laws, (iii) any claim from a third party (including the end customers/consumers of the Customer) in relation to the provision of Service, or for any breach of intellectual property rights by the Customer, or (iv) any claim in relation to the Goods or their nature, including any claim from the Customer's end customers/consumers in relation to any health and safety incidents, or (v) damage or loss of property, or any other damages arising from any product liability claim relating to the Shipment and/or any wilful or negligent acts or omissions of Customer, its employees, agents or subcontractors; or (vi) the performance of customs clearance Services on behalf of the Customer or (vii) any cause arising from or with respect to the storage handling or transport of any (a) Excise Goods, (b) Controlled Goods/Special Goods or (c) Dangerous Goods, for which Aramex is not responsible.

13 ADVERTISING AND CONFIDENTIALITY

13.1 Each Party will protect the confidentiality of information provided by the other Party, or to which the receiving Party obtains access by virtue of its performance under this Agreement, that either has been identified as confidential by the disclosing Party or by its nature warrants confidential treatment. The receiving Party will use such information only for the purposes of this Agreement and will not disclose it to anyone except its employees or professional advisors who have a need to know the information provided that such employees or professional advisors are bound by confidentiality obligations.

13.2 These nondisclosure obligations will not apply to information that is or becomes public through no breach of the receiving Party, is received from a third party free to disclose it, is independently developed by the receiving Party, or is required by law to be disclosed. In the event where disclosure is required by law, the receiving Party will, if legally permissible, provide the disclosing Party with prompt written notice of the disclosure required, and will assist the disclosing Party, at the disclosing Party's request, in obtaining a protective order in respect of such disclosure.

13.3 Confidential information will be returned to the disclosing Party upon its request, except that each Party may retain one copy in its legal files solely for purposes of documenting its compliance with its obligations hereunder.

13.4 The Parties agree that the [Data Privacy Schedule](#)⁴ will govern processing of personal data under this Agreement.

14 TERMINATION

14.1 This Agreement may be terminated, with immediate effect, for cause by notice in writing:

14.1.1 by either Party to the other, where the other Party has committed a material breach of this Agreement and has failed to remedy the breach within thirty (30) days of receipt of notice from the other Party requesting such remedy;

14.1.2 by either Party if the other Party is unable to pay its debts as they fall due or an order is made or a resolution passed for its liquidation, winding-up or dissolution (otherwise than for the purposes of a solvent amalgamation or reconstruction) or an administrative or other receiver, manager, trustee, liquidator, administrator or similar officer is appointed over all or any substantial part of its assets or takes formal steps towards making any kind of composition, compromise or arrangement involving it and any of its creditors or anything analogous to the foregoing will occur in any jurisdiction;

14.1.3 by Aramex where invoice(s) due to Aramex remain unpaid by Customer for more than thirty (30) days after the same became due; or

14.1.4 by Aramex where Aramex reasonably suspects or is aware of any potential or actual breach or failure by the Customer to comply with any applicable laws pursuant to clause 6.4.7.1.

14.2 This Agreement may be terminated by either Party for convenience at any time during the Term subject to a thirty (30) days' notice to the other Party of that effect.

15 FORCE MAJEURE

15.1 If either Party is prevented or delayed from carrying out its obligations under this Agreement by reason of Force Majeure Event, which in the case of this Agreement, will mean any act of God, riots, strikes or lock-outs (except those by officers, employees of the Party seeking to avail itself of this Clause or those of its suppliers or contractors), wars, pandemics, epidemics, government or regulatory authority imposed restrictions or mandates or orders and similar events beyond the reasonable control of the Parties ("Force Majeure Event"), then the Party affected by the Force Majeure Event will be temporarily relieved of its non-monetary obligations for the period of time that the Force Majeure Event persists.

15.2 In the event that the Force Majeure Event continues for a period of one (1) month or more, then either Party may terminate this Agreement by immediate notice to the other Party.

16 ASSIGNMENT / SUBCONTRACT

16.1 Except as set out in clause 16.2, neither Party will assign its rights and/or obligations under this Agreement in whole or in part or any other person or entity without the other Party's express prior written consent. However,

⁴ [Data Privacy Schedule](#) is available at [http://www.aramex.com/privacy-policy](#)

nothing in this Agreement will restrict Aramex from assigning the Agreement to any affiliate under the Aramex group of companies. Any unauthorized assignment will be null and void. Subject to the foregoing, this Agreement binds and benefits each Party and its respective successors and assigns.

16.2 Aramex reserves the right to subcontract in whole or in part the Services to any party without the Customers prior written consent, provided that Aramex shall not thereby be relieved of any of its obligations under this Agreement.

17 VARIATION AND WAIVER

17.1 No variation of this Agreement and no agreement at variance with any of the terms and conditions hereof will be binding on the Parties hereto unless contained in writing and signed by them (including their respective agents duly authorized hereto).

17.2 Failure or delay by either party to exercise any of its rights under this Agreement will not be deemed to be a waiver thereof and will not preclude the exercise of such right in the future.

18 NOTICES

18.1 All notices hereunder will be in writing addressed to the recipient Party using the details supplied in the Commercial Terms or as notified from time to time to the other Party.

18.2 Notices will be deemed to have been duly given:

18.2.1 when delivered, if delivered by courier or other messenger (including registered mail) during normal business hours of the recipient; or

18.2.2 when sent, if transmitted by e-mail and a successful return receipt is generated.

19 ELECTRONIC COMMUNICATION

19.1 The parties agree there may be communication with each other via e-mail (including the internet) or other electronic means (including API and EDI) (collectively, "Electronic Communications") for purposes of meeting obligations under this Agreement. Customer acknowledges that each party may need to access to the other party's systems in order to perform the Services.

19.2 The parties recognize that Electronic Communications are inherently insecure and that e-mails and data can become corrupted, communications are not always delivered promptly (or at all). In addition, the Electronic Communications are prone to viruses and may not be encrypted. Each party will be responsible for protecting its own systems and interests and Aramex will not be responsible nor liable to Customer on any basis (contract, tort or otherwise) for any loss, damage or omission in anyway arising from the use of Electronic Communications as a form of communication or other reason(s) under this Agreement.

19.3 Aramex may initiate communications with Customer via instant messaging channels (such as WhatsApp, WeChat or other social media platforms) while providing the Services. Customer agrees that Aramex does not have control over these and such use may prejudice the confidentiality of Customer information. If Customer

communicates with Aramex via instant messaging, Aramex will not be held liable for any data breach which results from transmitting information through these means, nor will Aramex be liable for any direct or indirect loss resulting from a data breach caused by using instant messaging or by third parties intercepting Customer information.

20 GOVERNING LAW AND JURISDICTION

20.1 This Agreement will be governed by and construed in accordance with the laws set out in the Commercial Terms.

20.2 Any claim or dispute arising out of or in connection with this Agreement, including its appendices, as well as any question regarding its existence, validity, application or termination, will be resolved by the courts set out in the Commercial Terms.

21 ANTI-CORRUPTION; ANTI-TERRORISM

21.1 Each Party will comply with all applicable laws, rules and regulations, including but not limited to, the US Foreign Corrupt Practices Act ("FCPA"), the UK Anti-Bribery Act of 2012, and all similar Territory anti-bribery laws, as well as all applicable international and local anti-terrorism laws.

21.2 Customer will be solely responsible for its customers and will implement a know your customer ("KYC") program in compliance with all applicable international and local anti-terrorism, anti-corruption, and anti-money laundering laws and regulations, which will be utilized to verify the personal information provided by Customer's customers under this Agreement.

21.3 Customer represents warrants and undertakes that neither Customer nor Customer's parent or subsidiary companies, affiliates or any of their shareholders, subcontractors, members, managers, directors, officers, employees, independent contractors, subcontractors or agents: (i) has made or authorized or will make or authorize any offer, payment, promise to pay, any money, including kick-backs, or a gift, promise to give, or the giving of anything of value to any third party including, but not limited to, a government official, political party, party official, family member or representative of a state-owned enterprise for the purpose of wrongfully influencing the recipient; obtaining or retaining business; or for securing or obtaining an improper business advantage; or (ii) has taken or permitted or will take or permit any action to be taken, including an action in connection with the conduct of their business and the transactions contemplated under this Agreement, which would cause Customer or Aramex to be in violation of any applicable anti-bribery or anti-corruption laws, including all local equivalent laws in the Territory in which the Services are to be provided under this Agreement. Customer further agrees that it will make no facilitating payment in any form to any government official or the family member or representative of a government official or party official on behalf of Customer or Aramex for the purpose of expediting or securing the performance of a routine non-discretionary governmental duty or action; or (iii) the Customer, nor any of its respective funding sources (including any shareholder, legal or beneficial owner of any

equity interest in Customer) is or has ever been a terrorist or suspected terrorist within the meaning of the applicable anti-terrorism laws or identified by name or address on any terrorist list.

21.4 At all times during the Term of this Agreement, Customer, its affiliates and representatives, will be solely responsible and will comply with applicable laws, rules, statutes, and regulations regarding anti-money laundering and anti-terrorist financing and sanctions program ("AML Laws"), including, without limitation, the implementation, maintenance, and operation of policies, programs, and procedures reasonably designated to comply with AML Laws ("AML Compliance Program"), including a KYC program; transaction monitoring to identify suspicious activity; fraud detection and other risk management activities and tools to prevent fraudulent transactions; and screening to ensure compliance with applicable sanctions programs.

22 SANCTIONS AND EMBARGO

22.1 Customer acknowledges and agrees that they shall be solely responsible for complying with applicable export control laws, rules and regulations, including, without limitations the regulations promulgated by the U.S. Department of Commerce and the U.S. Department of the Treasury; U.S. Department of the State; and economic sanctions programs implemented by the United Nations, the European Union or its Member States, or other applicable government authority ("Sanctions and Export Laws").

22.2 Customer represents, warrants and undertakes that it is not identified on any U.S. government restricted party lists (including, without limitation, the U.S. Treasury Department's List of Specially Designated Nationals and Other Blocked Persons, the U.S. Department of Commerce's Denied Party List, Entity List and Unverified List and the U.S. Department of State's proliferation-related lists), or owned or controlled by any such person. Customer agrees that it will not use, transfer, download, export or re-export, directly or indirectly, to third party or entity which is ineligible to receive the item or to any country that is subject to comprehensive

U.S. trade sanctions or restrictions (currently including, without limitation, Cuba, Iran, North Korea, Sudan, Syria, and Venezuela).

22.3 Aramex may refuse to provide any Services, or deliver any Shipment, if such Service or delivery or transaction could be in violation of any Sanctions and Export Laws.

23 MISCELLANEOUS

23.1 It is agreed and understood between the Parties that Aramex is free to provide similar services to customers other than Customer pursuant to any separate agreements.

23.2 This Agreement will apply to and bind the successors and assigns of the Parties hereto.

23.3 If any provision of this Agreement is prohibited by law or judged by a court to be unlawful, void or unenforceable, the provision will, to the extent required, be severed from this Agreement and rendered ineffective as far as possible without modifying the remaining provisions of this Agreement and will not in any way affect any other circumstances of or the validity or enforcement of this Agreement.

23.4 This Agreement will not constitute or imply any partnership, joint venture, agency, fiduciary relationship or other relationship between the Parties other than the contractual relationship expressly provided for in this Agreement.

23.5 This Agreement constitutes the entire agreement between the Parties relative to the Services and supersedes all prior agreements, arrangements and negotiations between the Parties in respect of its subject matter. This Agreement may be executed in any number of counterparts or duplicates, each of which will be an original, and such counterparts or duplicates will together constitute one and the same agreement. The counterparts of this Agreement may be executed and delivered by electronic signature by either of the Parties and the receiving Party may rely on the receipt of such document so executed and delivered electronically as if the original had been received.

TO BE REVIEWED BY THE RELEVANT
OPERATIONS TEAM

PART C - SERVICE SPECIFIC TERMS

APPENDIX 1: SCOPE OF SERVICE

Subject to the terms of the Agreement, Aramex will perform the following Services to the sole benefit of Customer (collectively as "Services"):

1 Services

1.1 Aramex will;

1.1.1. collect Customer's Shipments from the address notified by the Customer in accordance with the Customers obligations set out below);

1.1.2. deliver the Shipments to [consignee's address as provided by Customer] as direct by the Customer, however such address must not be located in a non-service area as advised by Aramex from time to time;

1.1.3. Aramex will make three (3) attempts to deliver on the following basis;

1.1.4. one (1) physical attendance to the address in clause 1.1.2 above; and

1.1.5. two (2) follow ups communication using electronic means

("Deliver Attempts")

1.1.6. reserve the right to transport the Shipments by any route and procedure and by successive carriers and according to its own handling, storage and transportation methods.

1.1.7. Where the Delivery Attempts fail Aramex's has the right to return the Shipment to the Customer as the Customer cost at the rates set out in appendix 2 of the Service Specific Terms or deal with the Shipment in accordance with clause 1.1.10 below.

1.1.8. have the right to return the Shipment to the Customer at an extra charge to be paid by the Customer in the event that a Shipment remains in Aramex's possession for more than 21 days due to the below reasons:

1.1.8.1. where a Shipment remains uncollected by a consignee; and

1.1.8.2. Customer has failed to give instructions to Aramex in respect of an unsuccessful delivery of Shipment after all Aramex's attempts of delivery.

1.1.9. the Customer is in default of the Agreement and/or fails to accept delivery of returned Shipments, Aramex shall have the right to dispose of such Shipments at Aramex's discretion and at the Customers cost, without the need to take any further legal action, or obtain a court order or a judgement in that regard.

1.1.10. Any Shipment that is unable to be delivered to the consignee (for reason including without limitation, failure to pay, take delivery, give proper instructions, including failure to clearly address the package, failure to confirm the Shipment is acceptable for entry into the destination country, failure to use correct location, failure to update the delivery address, or the Delivery Attempts by Aramex fails) will be deemed an uncollected Shipment or unclaimed Shipment and Aramex reserves the right to deal with that Shipment in any lawful manner it considers appropriate, which may mean the package is discarded, destroyed, returned to sender, or auctioned.

1.1.11. Air Freight

Air freight services will be provided in accordance with the following:

1.1.11.1.all Shipments are subject to the carrier's acceptance and confirmation relating to its capacity and availability. Due to airlines security measures, Shipments are maybe subject of a (24) hours "cooling" period before departure;

1.1.11.2.all terms and conditions stated on the back of the airway bill are applicable under this Agreement; and

1.1.11.3.all Shipments are subject to physical inspection and scanning and Aramex has the right to open any Shipment in order to perform the foregoing

1.1.12. Sea Freight

Sea freight service will be provided in accordance with the following:

1.1.12.1.a maximum payload into 20' & 40' containers in accordance with the shipping line rules and regulations;

1.1.12.2.bookings are subject to space and equipment availability. Transit times, routings and transshipment ports are indicative only, which may change depending on the liners prevailing space, congestion situation, war situation or due to any unforeseen circumstances. Sailing schedules, if given,

are based on shipping lines' current schedule which could vary and change without notice;

1.1.12.3. vessels' estimated time of departure (ETD) and estimated time of arrival (ETA) are subject to liner's final sailing schedule;

1.1.12.4. all terms and conditions stated on the back of the sea bill of lading are applicable under this Agreement.

1.1.12.5. acceptance of goods that are engraved with made in origin country, and stickers attached on the outer packages mentioning the made in country.

1.1.12.6. all Shipments are subject to physical inspection and scanning and Aramex has the right to open any Shipment in order to perform the foregoing.

1.1.13. Land Freight

Land freight services will be provided in accordance with the following:

1.1.13.1. all Shipments are subject to physical inspection and scanning and Aramex has the right to open any Shipment in order to perform the foregoing;

1.1.13.2. Goods being palletized for the safety and security of land transportation of the Goods. In the event requests from Aramex to do the palletization, the same shall be done with an additional charge;

1.1.13.3. all Goods, which are duty exempted, are subject to customs inspection or approvals at the destinations. There is no official circular issued by GCC customs with regard to the same. If any duty imposed on arrival at the destination, the same shall be notified to the Customer; and

1.1.13.4. all terms and conditions stated on the back of the consignment note are applicable under this Agreement.

1.1.14. In-land Transportation

1.1.14.1. At Origin: Aramex will receive the Customer's Goods/Shipments from the sites specified by Customer and transport the same to the airport, seaport or land points of exist.

1.1.14.2. At Destination: Aramex shall receive Customer's Goods/Shipments from the airport, seaport or land points of entry and transport the same to the sites specified by Customer. Loading and unloading will remain the responsibility of Customer

and/or its clients, except where Aramex itself agrees in writing to handle the loading or unloading operations.

1.1.15. Customs' Clearance

1.1.15.1. Upon receipt of all required documents Aramex shall make the customs entries and submit all documents required for the import in, or export out of the Customer's country of operations, of Customer's Goods/Shipments.

1.1.15.2. Aramex shall facilitate the import and export of Customer's Goods/Shipments, in compliance with applicable regulations.

1.1.15.3. Aramex shall notify Customer about any of its Shipments pending clearance and/or incurring storage/demurrage charges.

1.2. Customer will:

1.2.1. the Customer shall notify Aramex via email of the Goods it wishes to transport, along with the consignment specifications, any information requested by Aramex and the location of the pickup.

1.2.2. ensure the total product charge for such goods, exclusive of taxes, shipping, and handling will not exceed USD 500.

1.2.3. provided Aramex with all import and export licenses and all documents and information necessary to enable customs clearance.

1.2.4. The Customer agrees to reach the following Minimum Shipping Commitment:

1.2.4.1. Approximate Annual Spend

1.2.4.2. Main Services Used air/sea/land/in-land/customs clearance

1.2.4.3. Average Shipment Size

APPENDIX 2: RATES CARD

A. Rates for Air Freight:

Aramex shall send a fee quote to the Customer for written approval in relation to each Shipment or Service. Once the fee quote is approved by the Customer, Aramex shall then provide the Services.

1. All rates will be calculated based on the higher of (i) Gross Weight, or (ii) Volumetric Weight. Volumetric Weight is calculated based on $W \text{ (cm)} \times H \text{ (cm)} \times L \text{ (cm)} / 6000$.
2. Service and rates are based on the aforementioned information/and/or nature and/or volume of cargo as provided by Customer. The approved fee quote is subject to change based on the actual cargo upon pick up and may differ from the previously approved quotes by the Customer. Rates are subject to "airline surcharges" which are charged at cost and are "Valid At Time Of Shipment" (V.A.T.O.S).
3. Rates provided are exclusive of all taxes, customs, duties, storage and regulatory charges, as applicable.

B. Rates for Sea Freight:

Aramex shall send a fee quote to the Customer for written approval in relation to each Shipment or Service. Once the fee quote is approved by the Customer, Aramex shall then provide the Services.

1. Aramex shall have the right to charge the Customer for any new surcharges or increase in existing surcharges (such as but not limited to fuel, BAF, CAF, security, peak season surcharges, local delivery order fees, terminal handling charges, loading/unloading, exchange BL fees, etc.) charges by Aramex third party subcontractors (shipping lines, road haulers, warehouse operators), customs or other authorities. Upon written request of the Customer, Aramex shall properly document and provide supporting documents for such surcharges or its respective increase. Rates are quoted as per current exchange rates and may vary at the time of the Shipment. Whichever is higher will be charged accordingly. All additional applicable local charges at origin or destination shall be additional.
2. Rates exclude courier, certificates of origin, custom duty, taxes, fines, insurance, packing, unpacking, inspection, lashing, loading, offloading, remote areas delivery charges custom stops, port, disconnected and grounded containers, THC, obtaining actual weight certificate, additional dray, demurrage, waiting time, repositioning, delays, detention, demurrage, storage, legalization, fumigation, sea all applicable origin charges, destination charges, all of which shall be billed extra. In case of containers inspection an additional charge of AED 300.00 PER CONTAINER will be applicable. In case a Shipment is requested to be offloaded by customs, loading and/or offloading charges will be applicable as per official receipt. In case the Shipment is a dangerous Goods shipment, shipment loading is subject to IMCO acceptance by the liner principals and IMCO surcharge. IMCO THC will apply.
3. Bill of Lading surrender switch, fee/telex release fee is charged on case to case basis and after the request of Customer to issue mentioned type of document
4. Rates are based on information provided by Customer and will be subject to change if final weight, dimension, size and type of container, pick up address, terms of shipping, or commodity/nature changes. Additional refundable deposit of (within 15 days) of USD 275.00 if the original documents not received. Additionally, a non-refundable service of USD 75.00 will be applicable.
5. Rates are subject to current fuel and other surcharges at the time of shipping.
6. Unforeseen charges may apply for customs examination, security checks, acts of war and terrorism, political and social unrests, port congestions, general average, and other unexpected events.
7. In the event liners revise their rates, or if shipment dimensions are actually higher than originally stated in the Shipper's Letter of Instructions (SLI), Aramex shall have the right to charge the increase to the Customer. Port or liner storage, when applicable, will be charged at cost to Customer. Demurrage and container charges at the port will be in accordance with the rules and regulations of origin and/or destination countries and will be charged to Customer as per official receipt.
8. Less than Container Load (LCL) rates will be charged based on the higher of (i) cubic meter (CBM), or (ii) volumetric weight. Charges will be based on per container for Full Container Load (FCL).

C. Rates for Land Freight:

Aramex shall provide the land freight Services based on the below rates:

Express Land Freight Solution

Aramex Land Freight service constitutes a major component in Aramex's Total Transportation Solutions by connecting geographically dispersed destinations via one ground network. The Land Freight service handles all your bulk shipping needs throughout the Middle East. This service also allows the customer to have a proof of delivery as well as the ability to track their Land Freight shipments through www.aramex.com

Service Schedule – Outbound UAE

Destination	MON	TUE	WED	THU	FRI	SAT	Transit
Saudi Arabia - Jeddah	X	X	X	X	X	X	6 days
Saudi Arabia - Riyadh	X	X	X	X	X	X	5 days
Saudi Arabia - Dhahran	X	X	X	X	X	X	5 days
Bahrain	X	X	X	X	X	X	4 days
Oman	X	X	X	X	X	X	1 day
Kuwait	X	X	X	X	X	X	5 days
Jordan			X			X	7 days
Qatar	X		X		X		4 days

LTL door to door rates Outbound UAE

The following are shipping Less Truck Load (LTL) ex Dubai rates in AED per Kg calculated based on the higher value of gross or volumetric weight

DESTINATION	Min Chargeable weight 100 kg	101 - 500 kg	501 - 1000 kg	1001 - 2000 kg	2001 - 3000 kg	3001 - 4000 kg	4001 - onwards
Muscat – Oman	150.00	1.10	1.05	1.00	0.95	0.90	0.90
Kuwait	200.00	1.70	1.40	1.40	1.30	1.30	1.20
Amman – Jordan	300.00	2.80	2.55	2.50	2.45	2.40	2.30
Bahrain	200.00	1.60	1.30	1.30	1.20	1.20	1.10
KSA – Dammam	200.00	1.40	1.30	1.30	1.20	1.20	1.10
KSA – Riyadh	200.00	1.50	1.40	1.40	1.30	1.30	1.20
KSA – Jeddah	250.00	1.70	1.60	1.60	1.50	1.50	1.40
Qatar – Doha	200.00	1.50	1.40	1.40	1.30	1.30	1.20

In order to use the above LTL tariff sheet:

- o Select the destination country.
- o Determine the chargeable weight of your shipment based on gross or volumetric whichever is higher.
- o Weight conversion Ratio: (1 CBM = 250 KGS) OR (L X W X H cm)/4000).
- o Multiply the corresponding rate per kilogram by the total shipment weight.
- o Add the related additional documentation charges at origin (BOE).
- o LTL standard pallet dimensions (120 L x 100 W x 200 H – cm).
- o ODD size dimensions will be quoted based on the volume taken on carriage.

Notes:

- All Rates stated here are in AED.
- Excludes Insurance & can be provided @ 2.5% of C&F invoice value subject to T&C.
- 10% FSC will be applicable on the above rates.
- KSA visa for BAH, KWI & DOH (In transit - immigration) is excluded and once revived it will be added to the cost
- For shipments 100kg or below, minimum chargeable rate will be applied.
- Rates quoted are valid for pick up from Jebel Ali/ Dubai / Sharjah for delivery to main cities at destination within city limits.
- Pick up's Or Deliveries to beyond city limits, remote areas or villages will be charged on adhoc case to case basis upon receipt of request or destination delivery address.
- Rates quoted are for pick up from Jebel Ali for delivery to main cities at destination.
- For any LTL pick up from other Emirates, Dubai areas, remote areas, an additional rate of AED 0.50 /kg or higher will be applicable depending on the pickup areas.
- Shipment originating from other Free zones in UAE will have additional charges in case there is special trucking or documentation involved.
- Documentation Charges of AED. 175.00 will be applicable for non-duty paid shipments out of Jebel Ali (BOE + Claim acknowledgment fees per shipment).
- Duty paid shipments BOE charges of AED 195.00 will be applicable per shipment.
- For Oman statistical BOE export declaration, AED 195.00 will be applicable per shipment.
- For SAIF ZONE export declaration charges will be AED 300/- per shipment. Customs Duties and Inspection charges will be as per official receipt.
- For DAFZA export declaration charges will be AED 325/- per shipment. Customs Inspection (if any) will be as per official receipt.
- Customs duties, taxes, clearance-related charges, warehouse storage & other surcharges are not Included In the tariffs.
- 5 days free warehouse free time at destination, thereafter warehouse storage charges apply as per tariff.
- Beyond collection & delivery, areas are excluded.
- DGR Handling Fees of 225 AED will be applicable per shipment.

Below is the trucking cost from Sharjah and Northern Emirates

➤ Sharjah (Pick up from Saif Zone, Hamriya FZE, Kalid Port).

As per SHJ RTA regulations there is truck ban timing from 2pm – 8pm for 10 Ton & 40ft trucks. Hence, Aramex require 24 hours prior notification for collection.

Area	Truck Type		
	3 Ton	10 Ton	40ft Trailer
Sharjah (Beyond City Limit)	AED 400	AED 650	AED 800/-
Sharjah (SAIF ZONE)	AED 400	AED 650	AED 800 -
Sharjah (HAMRIYA)	AED 450	AED 800	AED 1000/- (Additional Toll charges applicable)

➤ Ajman (Collection charges)

Area	Truck Type		
	3 Ton	10 Ton	40ft Trailer
Ajman	AED 400	AED 700	AED 800/- (Additional Toll Charges Applicable)

➤ Umm Al Quwain (UAQ) (Collection charges)

Area	Truck Type		
	3 Ton	10 Ton	40ft Trailer
UAQ	AED 550	AED 800	AED 900/- (Additional Toll Charges Applicable)

➤ Ras Al Khaimah (RAK) (Collection charges)

Area	Truck Type		
	3 Ton	10 Ton	40ft Trailer
RAK	AED 600	AED 900	AED 1100/- (Additional Toll Charges Applicable)

➤ Fujairah (FJR) (Collection charges)

Area	Truck Type		
	3 Ton	10 Ton	40ft Trailer
FJR	AED 600	AED 1000	AED 1200/- (Additional Toll Charges Applicable)

KUWAIT Destination Charges for LTL: NAZ

Delivery Order:	7 KD per DO (Against official Receipt)
PWC Charges:	18.510 KD per Shipment (against Official Receipts)
Storage Charges:	0.30 per 50 kg/day after the first 4 days of arrival at NAS

KUWAIT Destination Charges for LTL: Sulebiya

Delivery Order:	(Against official Receipt)
PWC Charges:	(Against Official Receipts)

JORDAN DESTINATION CHARGES FOR LTL:

The above rates are only Door to Port

Most of the consignees in Jordan have their own clearance agent and shipment is cleared and delivered by AMM customs, which the customs charge the consignee Directly.

If Aramex is clearing the shipment the clearance charges are billed to the consignee by Aramex Jordan along with Customs official documents.

E. Rates for undelivered Shipments:

Aramex shall return the undelivered Shipments based on the below rates:

Full Truck Load Rates Outbound Jebel Ali free zone Dubai, UAE (All Rates in AED) for Closed Box

SR No	Destination	Closed box dry 13.6 meter	Reefer 13.6 meter	Closed box dry 15 meter
1	BAH	6150.00	7350.00	6700.00
2	DOH	4815.00	6015.00	5365.00
3	KWI	6475.00	7675.00	7025.00
4	DHA VIA BATHA	4880.00	6080.00	5430.00
5	RUH VIA BATHA	5260.00	6460.00	5810.00
6	JED VIA BATHA	7210.00	8410.00	7760.00
7	DHA VIA KIFA	6207.00	7407.00	6757.00
8	RUH VIA KIFA	6707.00	7907.00	7257.00
9	JED VIA KIFA	8707.00	9907.00	9257.00
10	OMAN	3065.00	4265.00	NA

Notes:

- Custom Duty: Based on official receipt.
- Insurance excluded.
- BOE AED 175
- Above rates applies on our branded / bonded (Aramex to Aramex) trucks only.
- For NON – branded additional charges might increase due to 3rd party brokerages' entry / In-transit fees ... (which will be as per actual receipts)
- KSA visa for BAH, KWI & DOH (in transit - immigration) is excluded and once revived it will be added to the cost

Storage/ Demurrage / Detention :

- Demurrage Charges to Bahrain/Kuwait/ Saudi Arabia will be 350 AED/day after 48 hours of arrival at customs of destination Border.
- Demurrage Charges to Muscat will be 350 AED from next day if the shipment is not offloaded.
- FTL. Cancellation will be 550 AED once the Truck is booked for collection.
- Reefer demurrage case to case basis.

Custom Broker details for Authorisation:

➤ **Saudi Arabia**

AUTHORIZED CUSTOMS BROKER (المخلص الجمركي) NAME IN ARABIC / ENGLISH	LICENSE #	LICENSE DATE	IMPORT /EXPORT	CLEARANCE POINT
Saudi Aramex / الشركة السعودية المحدودة / .Company Ltd	4068	07/06/1442	Both	KING FAHAD INTERNATIONAL AIRPORT

- **Oman:** Broker Shinas Light (C00005540)
- **Qatar:** Agency code: 1539 / Agency Name: ARAMEX DOHA / Agency C/R# 52034/1
- **Jordan / Bahrain / Kuwait:** No need

D. Rates for Custom's Clearance:

Aramex shall send a fee quote to the Customer for written approval in relation to each Shipment or Service. Once the fee quote is approved by the Customer, Aramex shall then provide the Services.